NON-DISCLOSURE AGREEMENT

# *Non-Disclosure Agreement*

ON SPOT SOLUTIONS LLC

*and*

ACME WIDGETS INC

PREPARED 24 APRIL 2026

FOR ACME WIDGETS INC

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*This Non-Disclosure Agreement ("Agreement") is entered into as of April 24, 2026 between On Spot Solutions LLC ("Disclosing Party") and Acme Widgets Inc ("Receiving Party").*

SECTION I

# Definitions

*Confidential Information* means all non-public, proprietary, or confidential information disclosed by Disclosing Party to Receiving Party for the purpose of technical evaluation of On Spot's Apollo platform for potential integration with Acme's document workflows, whether orally, in writing, electronically, or in any other form.

Confidential Information does not include information that: (a) is or becomes generally known to the public through no breach of this Agreement by Receiving Party; (b) was known to Receiving Party prior to disclosure hereunder; (c) is independently developed by Receiving Party without use of or reference to Confidential Information; (d) is lawfully obtained by Receiving Party from a third party without breach of any confidentiality obligation; or (e) is required to be disclosed by law or court order, provided that Receiving Party gives Disclosing Party reasonable advance notice of such requirement.

SECTION II

## Obligations of Receiving Party

Receiving Party agrees to:

1. Hold Confidential Information in strict confidence and not disclose it to any third party without prior written consent of Disclosing Party.
2. Use Confidential Information solely for the purpose stated herein and not for any other purpose.
3. Protect Confidential Information with the same degree of care used to protect its own confidential information, but in no event less than reasonable care.
4. Limit access to Confidential Information to employees, agents, or advisors who have a legitimate need to know and who are bound by confidentiality obligations at least as restrictive as those contained herein.
5. Return or destroy all materials containing Confidential Information upon written request by Disclosing Party or termination of this Agreement.

SECTION III

## Permitted Disclosures

Receiving Party may disclose Confidential Information only: (a) as required by law or legal process, provided Receiving Party gives Disclosing Party reasonable advance written notice to permit Disclosing Party to seek a protective order; or (b) to employees, consultants, or advisors who need access to perform the evaluation purpose and who are bound by written confidentiality obligations substantially similar to those contained herein.

SECTION IV

## Term and Termination

This Agreement shall remain in effect for three (3) years from the Effective Date. The obligations of confidentiality shall survive termination of this Agreement and continue for a period of three (3) years following termination. Either party may terminate this Agreement at any time upon written notice to the other party.

SECTION V

## Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the Commonwealth of Massachusetts, without regard to its conflict of laws principles. Any disputes arising under this Agreement shall be subject to the exclusive jurisdiction of the state and federal courts located in Massachusetts.

This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior or contemporaneous agreements, whether written or oral, relating to such subject matter. This Agreement may not be amended except by written instrument signed by both parties. If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

EXECUTION

# *Signatures*

DISCLOSING PARTY

On Spot Solutions LLC

SIGNATURE

DATE

RECEIVING PARTY

Acme Widgets Inc

SIGNATURE

DATE